Filing Fees Are Not Refundable

☐ CIRCUIT COURT ☐ DISTRICT COURT OF MARYLAND FOR _____ City/County

Located at _____ Court Address Telephone _____

Case No. _____

Tracking # _____

STATE OF MARYLAND vs. _____ Defendant _____ DOB

PETITION FOR EXPUNGEMENT OF RECORDS
(NON-MARIJUANA/CANNABIS RELATED OFFENSES)
(GUILTY DISPOSITION)

(In this petition, references are to the Annotated Code of Maryland, and references to "crime," and to "criminal action," refer to any criminal offense, other than a violation of the vehicle or traffic laws, ordinances, or regulations, that does not carry a possible sentence of imprisonment.)

1. (Check one of the following boxes) On or about _____ Date, I was ☐ arrested, ☐ served with a summons, ☐ or served with a citation by an officer of the _____ Law Enforcement Agency at _____, Maryland, as a result of the following incident _____.

2. I was charged with the offense of _____.

3. On or about _____ Date, I was **convicted** (found guilty) of (check all that apply, making sure that each statement is true and correct):

☐ the **charge/offense**, but **the conduct on which the charge/offense is based is no longer a crime**.

☐ the conviction was for sodomy or unnatural or perverted sexual practices, and the conviction is not precluded from being expunged for any of the reasons listed in § 10-105(a-1) of the Criminal Procedure Article.

☐ a crime specified in Criminal Procedure Article, § 10-105(a)(9). Three (3) years have passed since the later of the conviction or completion of the sentence(s). I am not now a defendant in any pending criminal action.

☐ one criminal act, which is not a crime of violence as defined in Criminal Law Article, § 14-101(a), and on or about _____ Date, I was granted a full and unconditional pardon by the Governor, with respect to that conviction. Not more than 10 years have passed since the Governor signed the pardon. I am not now a defendant in any pending criminal action.

☐ a misdemeanor crime specified in Criminal Procedure Article, § 10-110. Five (5) years have passed since the completion of the sentence(s) imposed for all convictions for which expungement is requested. During the applicable waiting period, I have not been convicted of a crime not now eligible for expungement. I am not now a defendant in any pending criminal action.

☐ a felony crime specified in Criminal Procedure Article, § 10-110, a crime specified in Criminal Law Article § 3-203, or common law battery. Seven (7) years have passed since the completion of the sentence(s) imposed for all convictions for which expungement is requested. During the applicable waiting period, I have not been convicted of a crime not now eligible for expungement. I am not now a defendant in any pending criminal action.

☐ first or second degree burglary or felony theft. Ten years have passed since the completion of the sentence(s) imposed for all convictions for which expungment is requested. During the applicable waiting period, I have not been convicted of a crime not now eligible for expungement. I am not now a defendant in any pending criminal action.

☐ a domestically related crime under Criminal Procedure Article, § 6-233. Fifteen years have passed since the completion of the sentence(s) imposed for all convictions for which expungement is requested. During the applicable waiting period, I have not been convicted of a crime not now eligible for expungement. I am not now a defendant in any pending criminal action.

4. ☐ The case began in one court and was transferred to another court other than juvenile court. (Note: This petition must be filed in the court to which the case was transferred.)

5. ☐ The case was appealed to a court exercising appellate jurisdiction. (Note: This petition must be filed in the appellate court.)

I request the court to enter an Order for Expungement of all police and court records pertaining to the above conviction(s).

I solemnly affirm under the penalties of perjury that the contents of this petition are true to the best of my knowledge, information, and belief, and that the charge to which this petition relates is not part of a unit the expungement of which is precluded under Criminal Procedure Article, § 10-107.

Signature of Attorney	Attorney Number	Date
Printed Name		
Address		
City, State, Zip	Telephone	
E-mail	Fax	

Signature of Defendant	Date
Printed Name	
Address	
City, State, Zip	Telephone
E-mail	Fax

Notice to Victim(s): You have the right to offer objections or additional information relevant to the petition to expunge conviction records under the Criminal Procedure Article, § 10-110 in all proposed actions. Submit your information in writing to the court listed above. The court may take action as soon as 30 days after the petition is served.

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